



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-22-00440 | Centennial Heritage, 2nd Filing – Final Plat
Date: February 13, 2023

Background:

The item for consideration is a *Final Plat*. This is approved by Resolution.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 2/13/2023
- Public Services Committee 2/22/2023
- Consideration 2/27/2023

Planning Commission Recommendation:

The Planning Commission heard this item at their February 6, 2023 meeting and recommended the Governing Body approve this application with the exceptions and conditions listed in the Staff Report by a vote of 5-0. Since the Planning Commission meeting, a final plat has been submitted addressing all technical corrections requested by City Staff.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Resolution
2. Final Plat Map (dated 2/7/2023)
3. Planning Commission Staff Report

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR CENTENNIAL HERITAGE, 2nd FILING, A REPLAT OF LOTS 8 THRU 12, BLOCK 2 CENTENNIAL HERITAGE AND A PORTION OF THE NW1/4 OF SECTION 2, TOWNSHIP 13 NORTH RANGE 66 WEST, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED SOUTH OF RALEIGH DRIVE, NEAR SAVANNAH DRIVE AND TAFT AVENUE).”

WHEREAS, Sun Valley Estates LLC and City of Cheyenne have subdivided said land in accordance with the statutes in such cases made and provided;

WHEREAS, Sun Valley Estates LLC and City of Cheyenne the owners of the above described land, has caused a subdivision plat of said land to be made, acknowledged, and certified, particularly describing the lots, blocks, easements, and rights-of-way; and,

WHEREAS, the above described subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration; the Planning Commission has recommended that said plat be approved by the Governing Body; and the plat has been duly executed by the Development Office;

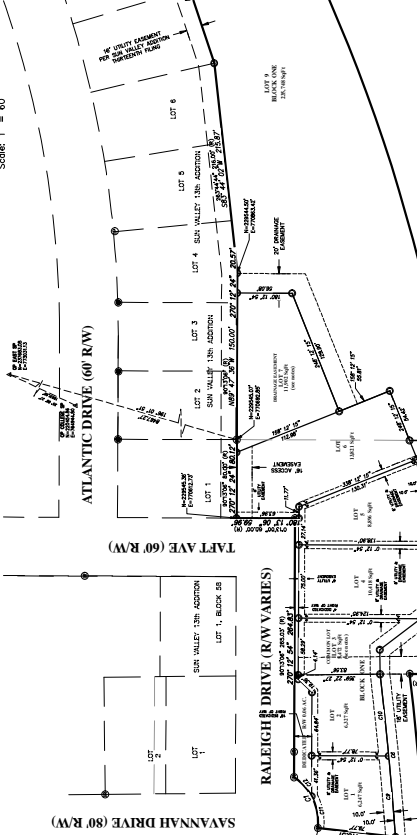
NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the subdivision described as Centennial Heritage, 2nd Filing, Cheyenne, Wyoming, be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute said plat, when Community Facility Fees have been paid in full.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2023.

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK



The City of Cheyenne, owner in fee simple of a tract of land situated in the NW¹/₄ of Section 2, Township 13 North, Range 66 West, of the 6th P.M., Laramie County, Wyoming, more particularly described as follows:

Have caused the same to be Surveyed, Vacated, and Replatted to be known as Centennial Heritage, 2nd Filing and do hereby declare the Subdivision of said land as it appears on this plat, to be their free act and deed and in accordance with their desires and hereby grant the easements shown for the purposes indicated hereon.

by: Patrick Collins, Mayor, City of Cheyenne

Planning & Development Director, City of Cheyenne, Wyoming

Mayor

ATTEST: _____
City Clerk

**CENTENNIAL
HERITAGE
2nd FLOOR**

A REPLAT OF
LOTS 8 THRU 12, BLOCK 2
CENTENNIAL HERITAGE AND
A PORTION OF THE NW¼ OF SECTION 2,
TOWNSHIP 13 NORTH RANGE 66 WEST
CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING
PREPARED OCTOBER, 2022



STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
 2105 WEST 10th ST. CHESTER, WY. 83001 • (307) 634-7373
 756 GULCHCROFT ST. WHEATLAND, WY. 83091 • (307) 525-5759
www.SteilSurvey.com • info@SteilSurvey.com

REVISED: 2/7/2023
21425 REVISED REPLAT.DWG



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CITY OF CHEYENNE PLANNING COMMISSION

FEBRUARY 6, 2023

STAFF REPORT

FILE: UDC-22-00440: Centennial Heritage, 2nd Filing Plat (Expedited Review)

REQUEST: A plat to create 8 lots for future multifamily and Greenway development

LOCATION: South of Raleigh Drive, near Savannah Drive and Taft Avenue

APPLICANT: Sun Valley Estates, LLC

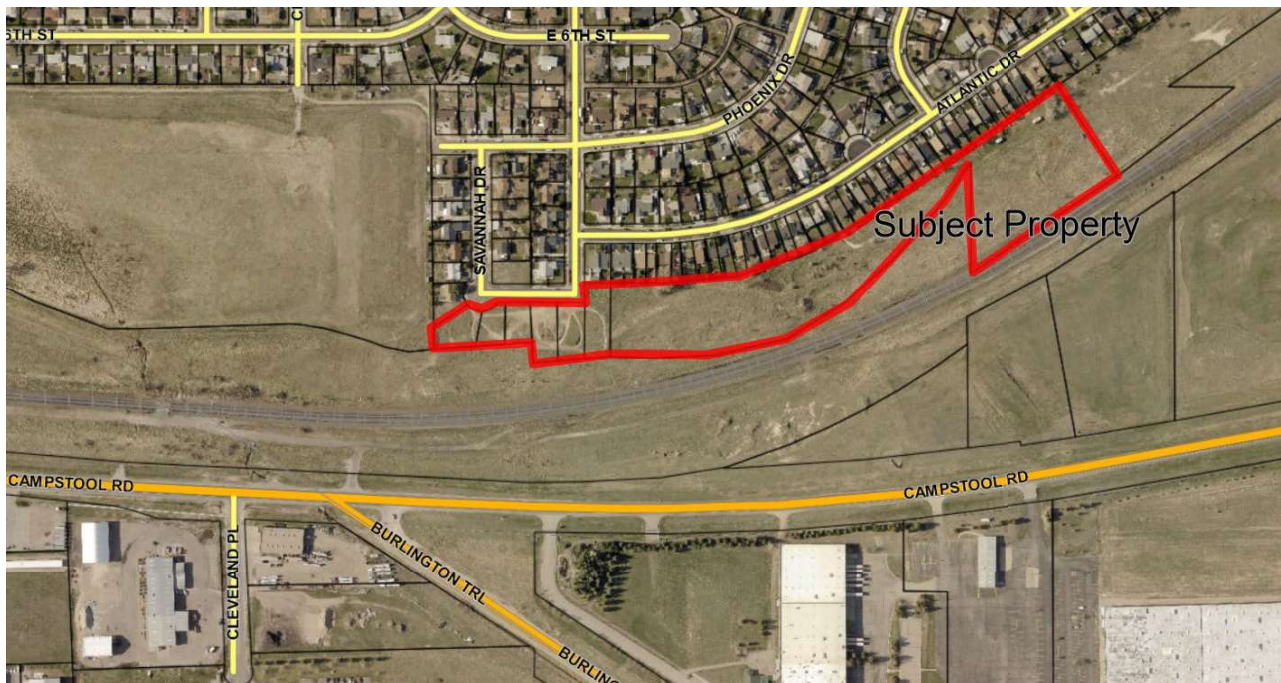
AGENT: Shane Hansen

OWNERS: Sun Valley Estates LLC, City of Cheyenne

ZONING: MR Medium Density Residential

PURPOSE: To re-arrange lots for better multifamily development alignment in concert with a Greenway alignment

PREPARED BY: Seth Lloyd, Senior Planner and Connor White, Planner II



RECOMMENDED MOTION:

Move to **approve** the Centennial Heritage, 2nd Filing Expedited Preliminary Plat, advancing the Final Plat to the Governing Body, with a recommended exception to block size and staff recommended conditions.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.1.2 Preliminary Plat Approval
- UDC 2.1.3 Final Plat Approval
- UDC Article 4 Subdivisions
- UDC Article 5 Zoning Regulations
- PlanCheyenne

BACKGROUND:

The applicant is requesting approval of a plat create multiple lots for future multifamily development, to include a City-owned parcel.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Residential	MR Medium Density Residential	Vacant
North	Urban Residential	MR	Single family residential
South	Mixed-use Commercial	HI Heavy Industrial	Railroad, Industrial
East	Urban Residential	County A-2 Agricultural	Vacant
West	Open Space and Parks	P Public	Vacant (detention)

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Preliminary Plat, the Commission must make the following findings required in UDC 2.1.2.d – a detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.1.2.d.1)

The future land use map within PlanCheyenne identifies this area as developing with a mix of residential uses, and the proposed plat in the existing zoning district would be compatible with this objective. PlanCheyenne supports the use of existing infrastructure and timely provision of services (including emergency and education services). This development is proposed in an area which has largely existing infrastructure. The property is within the Urban Service Boundary and has access to all utilities.

The application **complies** with this review criterion.

- 2) **The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities. (UDC 2.1.2.d.2)**

The proposed plat re-arranges lots for multifamily development. The existing lots have received conditional use approval and could each be developed with multifamily buildings. The proposed plat allows a Greenway to run through the area and the multifamily to be more logically laid out. The size and location of lots is similar to those found in the area. The plat appears to be able to be served in a logical manner by utilities. The surrounding developable area is largely already developed.

The application **complies** with this review criterion.

- 3) **The division of land meets the purposes, intent, and all applicable standards in Article 4. (UDC 2.1.2.d.3)**

Community Facilities and Fees (4.2):

The proposed subdivision is in an area with existing facilities. The City owns land within the plat boundary which can be developed with a public facility (the plan is to utilize the land for a Greenway). Park Fees are not charged with the signing of the plat if the plat does not increase area, number of lots or development area. As the developable area is being swapped with the City. No fees are due at plat signing.

Transportation Network (4.3):

This plat is occurring within an area of the community which has largely been previously developed. The plat is limited by the railroad to the south. An exception for block sizes must be granted.

Open Space (4.4):

The Greenway is part of this plat, and multifamily units may provide open space at the site plan level, should the Greenway not meet requirements.

Required Improvements (4.5):

The streets in the area are existing, but improvements and utilities may need to be developed with the plat.

Public Safety Fees (4.6):

Public Safety Fees will be due with building permits of new construction on the site.

The application **complies** with this review criterion, with an exception.

- 4) **Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned. (UDC 2.1.2.d.4)**

No phasing is specifically proposed with this project.

Review criterion **not applicable**.

- 5) **The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts. (UDC 2.1.2.d.5)**

Drainage:

A drainage worksheet was submitted and reviewed. Staff will require a drainage study with future development of the site. A drainage study will be required with the site plan submittal.

Traffic:

A traffic worksheet was submitted and reviewed. There were no concerns with traffic at the plat level for the project as presented.

The application **complies** with this review criterion.

- 6) **Lots proposed for development shall be buildable lots according to the existing or proposed zoning district standards, result in design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district, and not aggravate nonconforming setbacks or currently adopted building and fire code access and separation requirements. (UDC 2.1.2.d.6)**

The proposed plat proposes multiple lots for future multifamily development. These lots are being adjusted to meet a specific development pattern.

The application **complies** with this review criterion.

- 7) **All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance. (UDC 2.1.2.d.7)**

The plat proposes unbuildable lots in the form of common lots for the apartment development and a Greenway lot. The City will own the Greenway lot. The common lots are proposed as being owned by an undivided interest with maintenance shared by the lot owners.

The application **complies** with this review criterion.

- 8) **The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property. (UDC 2.1.2.d.8)**

The plat is adjacent to developed property to the north. To the south is the railroad track. The narrow frontages to the east and west abut largely vacant land. The land has already received conditional use approval for multifamily development and could develop in that manner without this platting action. The plat allows for a more logical alignment of the project and interface with a Greenway.

The application **complies** with this review criterion.

9) The application is not harmful to the public health, safety, and welfare. (UDC 2.1.2.d.9)

City staff is satisfied that this proposed plat would not adversely affect the public health, safety, or general welfare.

The application **complies** with this review criterion.

10) Remainder lot(s) shall be clearly identified on the preliminary plat and shall not be developed or proposed for development for purposes. Remainder lot(s) shall be noted and described on all plats either graphically or by legal description. (UDC 2.1.2.d.10)

Remainder lots are not proposed with this plat.

Review criterion **not applicable**.

11) The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan. (UDC 2.1.3.d.1)

The Final Plat submitted with the application is substantially similar to the Preliminary Plat submitted. As requested by Staff, the entire City-owned parcel is included with the final Plat.

The application **complies** with this review criterion.

12) The application meets any conditions or modifications of the approved preliminary plat. (UDC 2.1.3.d.2)

Through the review process and application of the Preliminary Plat, Staff recommended changes, clarifications, and corrections for technical issues. Many of the issues have been addressed with a revised submittal. Some technical correction still must be addressed, and a revised map will need to be submitted prior to Governing Body approval.

The application **complies with conditions** for this review criterion.

13) The application meets the purposes, intent, and applicable standards of Article 4. (UDC 2.1.3.d.3)

As a concurrent Preliminary and Final Plat application, this Final Plat review criterion is covered by the equivalent Preliminary Plat review criterion (subsection 3 above).

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, comments were received regarding the following issues:

1. Correct ownership.
2. Technical corrections.
3. Drainage requirements needing to be addressed.
4. Including the entire City-owned parcel in the plat.
5. Putting all parking in a common lot.
6. Note language concerns.

Most issues have been addressed through a revised submittal. Technical corrections still need to be addressed and Note 6 should be removed from the Plat. The utility easements should be a general utility easement and not granted to a specific utility company. The easement on the original plat was not granted to a specific utility company and should not be changed with this Plat.

The applicant has indicated that an easement will be placed on the common parking lot at a later date because the parking lot design/location could change during the site plan process. Staff is satisfied with this.

CONCLUSION:

Staff analysis is that the application meets the review criteria and therefore recommends approval of the expedited plat application as submitted by the applicant, with conditions and the granting of an exception to block size requirements. The area this plat is proposed in an area with existing street network. The property is constrained by the railroad.

ALTERNATIVES:

1. Recommend approval of the expedited preliminary plat, forwarding the Final Plat to the Governing Body.
2. Recommend approval of the preliminary plat with conditions and that a final plat addressing the conditions of approval be prepared and presented to the Governing Body. **(Staff Recommendation)**
3. Recommend approval of the preliminary plat as submitted by the applicant and forward the preliminary plat to the Governing Body.
4. Recommend approval of the preliminary plat subject to staff's recommended conditions and forward the preliminary plat to the Governing Body.
5. Recommend denial of the preliminary plat based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
6. Postpone the project until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

The Planning Commission may modify staff's recommended conditions, delete conditions, add conditions, or decide contrary to staff's recommendation. In the event conditions are modified, the conditions shall relate to applicable review criteria. In the event that the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

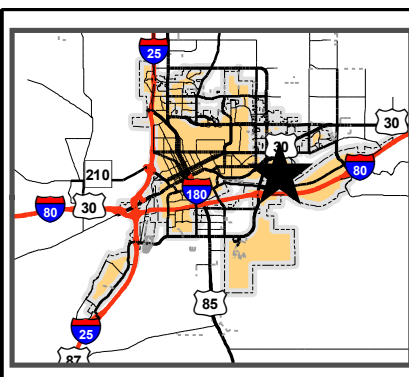
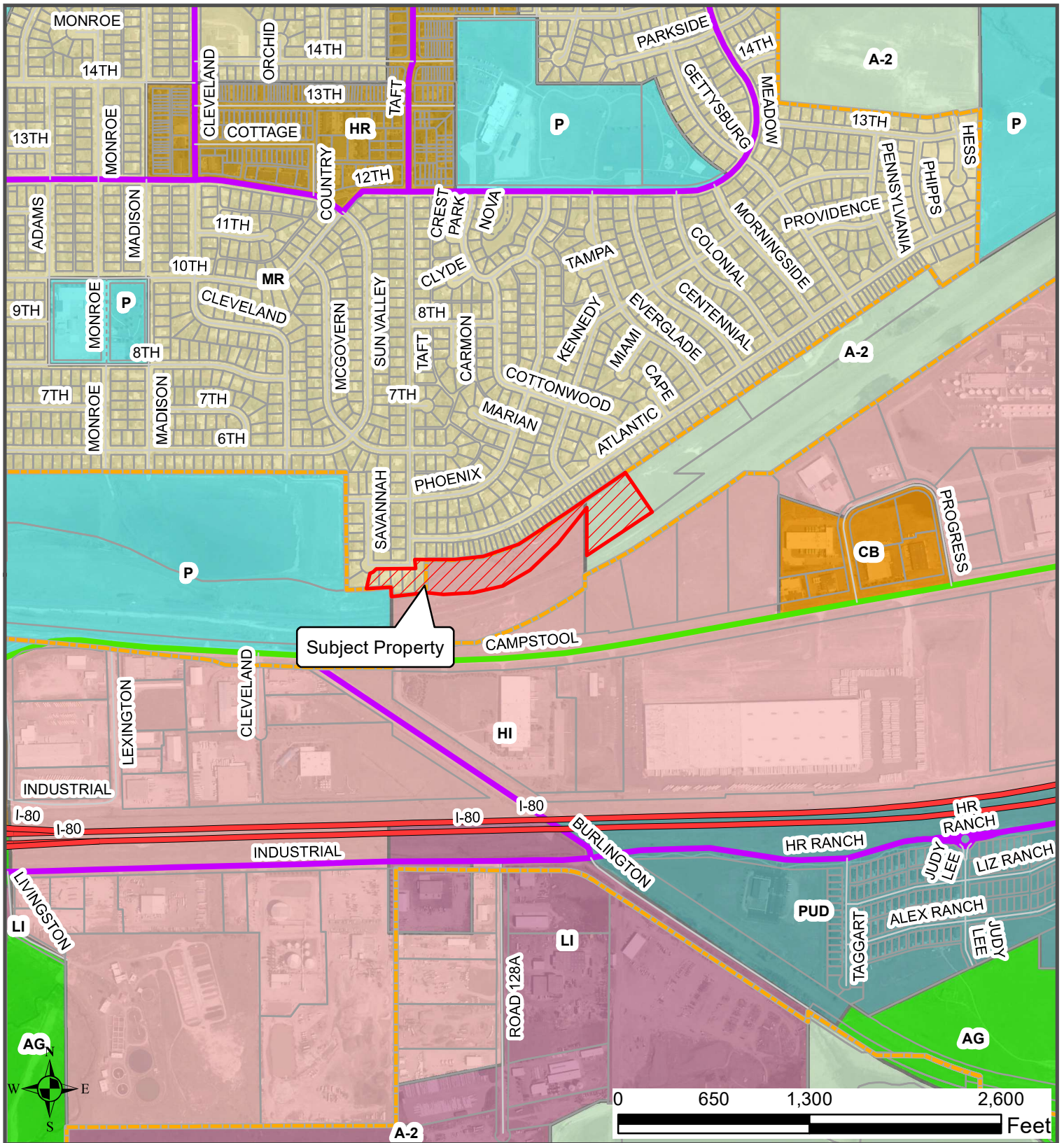
STAFF RECOMMENDATION:

Staff recommends approval of the expedited Preliminary Plat, advancing the Final Plat to the Governing Body, with the following exception and conditions:

1. Exception to UDC 4.3.3.c, regarding minimum block size and connectivity for Block 1.
2. Prior to approval of the final plat the following shall be required:
 - a. Technical corrections to the plat and supporting documents shall be made to the satisfaction of the City prior to approval by the Governing Body.
 - b. Note 6 shall be removed from the Plat.

ATTACHMENTS:

1. Zoning Map
2. Land Use Plan Map
3. Master Application Form
4. Preliminary Plat (dated 11/23/2022)
5. Final Plat (dated 1/18/2023)

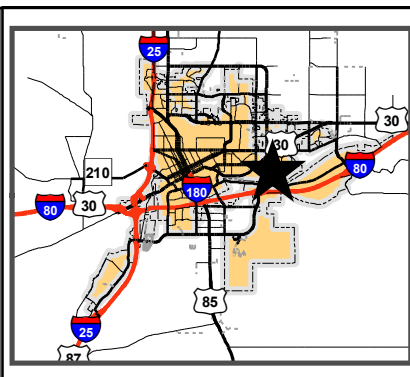
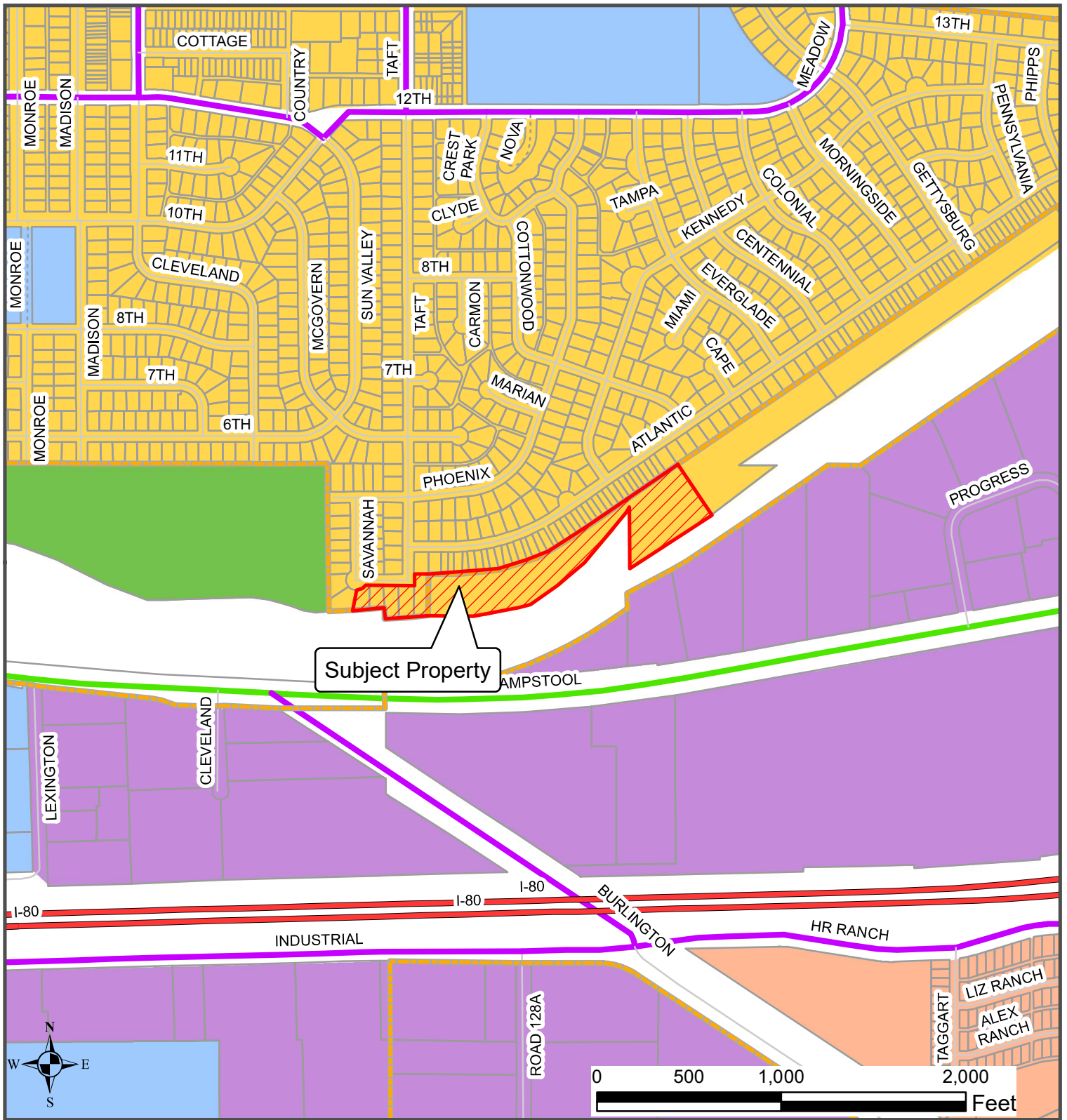


Attachment 1: Zoning Map UDC-22-00440

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map UDC-22-00440

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Legend

Nov19_CityLimits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Platted not built		
Private		
Ownership		

Planning and Development: Plat - Expedited

Submission date: **22 November 2022, 12:54PM**

Receipt number: **28**

Related form version: **11**

General Information

Applicant Name: **SUN VALLEY ESTATES, LLC**

Applicant Address: **2116 PIONEER AVE**

Applicant City: **CHEYENNE**

Applicant State: **WY**

Applicant Zip Code: **82001**

Applicant Phone: **307.222.6386**

Applicant Email: **robert@swaggerconstruction.com**

Representative Name: **Shane Hansen**

Representative Address: **1102 west 19th**

Representative City: **Cheyenne**

Representative State: **WY**

Representative Zip Code: **82009**

Representative Phone: **3076347273**

Representative Email: **shansen@steilsurvey.com**

Owner Name: **SUN VALLEY ESTATES, LLC**

Owner Address: **2116 PIONEER AVE**

Owner City: **Cheyenne**

Owner State:	WY
Owner Zip Code:	82001
Owner Phone:	307.222.6386
Owner Email:	robert@swaggerconstruction.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	loa.PDF
Project Location (Street Address or General Location):	raleigh and savanah
Assessor's Parcel ID number(s)	13660310300700, 13660310300800, 13660310300900, 13660220702000, 1366022070, 13660220000100, 13660220701800, 1900,
Total Project Area	1.86 acres
Existing Zoning	MR - Medium-density Residential HI - Heavy Industrial

Application-Specific Information

Eligibility Determination	I acknowledge that staff has determined this is eligible to be submitted as an expedited plat.
Written Statement	Pre app settled on expedited plat
Current Subdivision	Centennial Heritage and Unplatted
Lots affected by this proposal	lots 7 thru 12 Block 2
A pre-application meeting is not required, but recommended. Please indicate the date the pre-application meeting was held.	12/15/2021
Upload any pre-application meeting notes or summaries PreApp_MeetingSummary12.15.2021.pdf relevant to this proposal.	
Are any easements proposed to be added, modified, or removed? Yes	

If easements are proposed to be added, modified, or removed. Attach Franchise Utility approval letters from all affected utilities. Failure to provide this information could result in delay of application review.

Open Space Approach

"Developer responsibilities for Open Space dedication and improvements are delineated in an MOU with the City. Residential units will include private patios or balconies."

Drainage Worksheet / Study

[1041 - DRAINAGE WORKSHEET.pdf](#)

Transportation Worksheet / Study

[CentennialHeritage2_TrafficWorksheet_110222.pdf](#)

Transportation Network Plan

Preliminary Plat Drawing

[21425 preliminary PAPER \(1\).pdf](#)

Final Plat Drawing

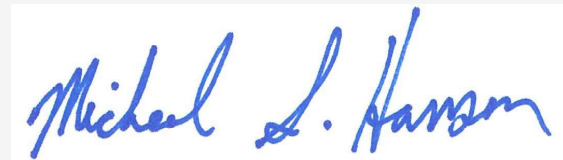
[21425 Replat PAPER \(1\).pdf](#)

I acknowledge that final stamped and signed mylars are required to be submitted prior to scheduling for Governing Body introduction.

Signature / Certification

Applicant Signature

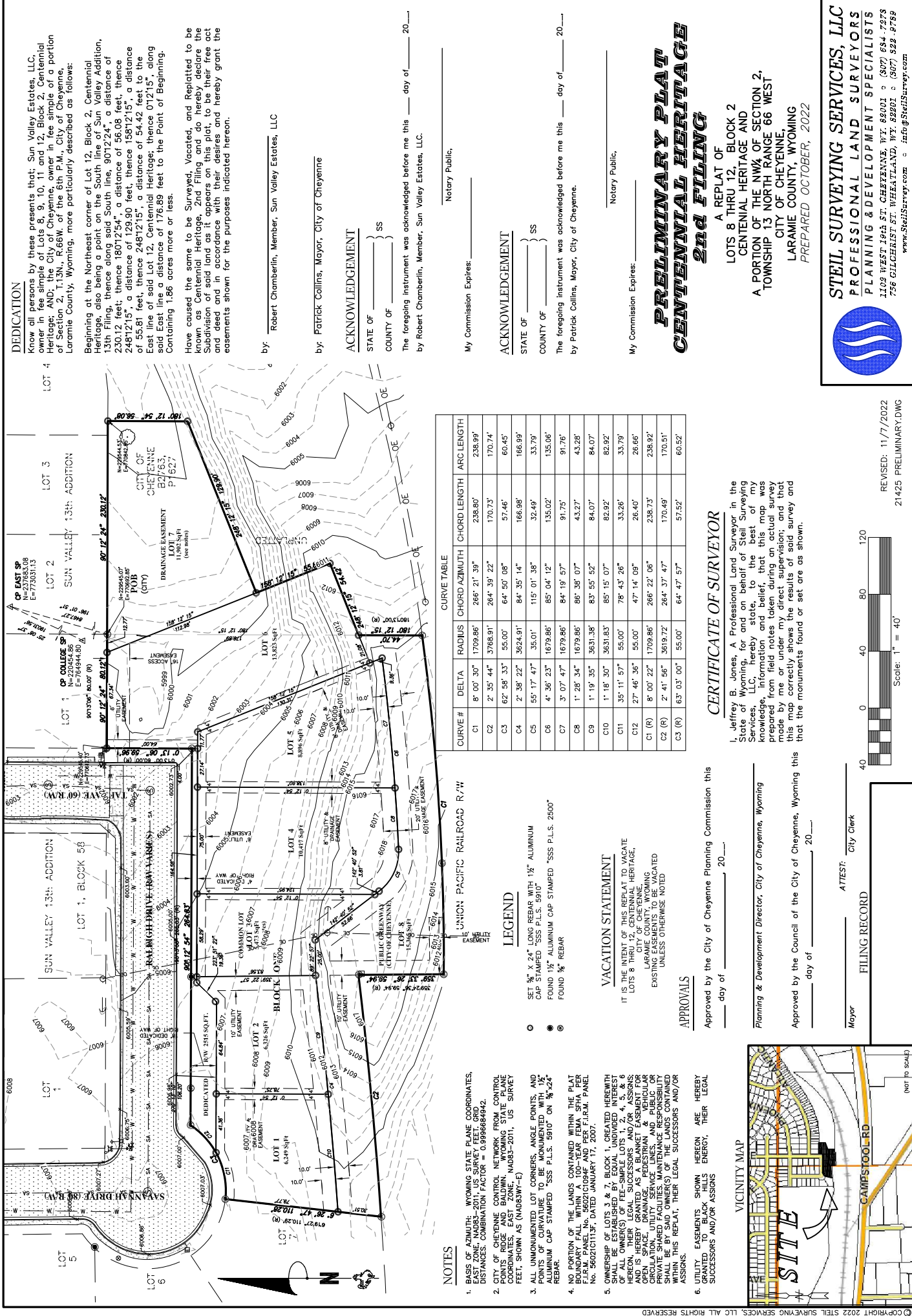
Name of signatory: Micheal Shane HANSEN



Uploaded signature image: [HANSEN SIGNATURE.jpg](#)

Please enter an email address for an email receipt.

shansen@steilsurvey.com



NOTES

1. BASIS OF AZIMUTH: WYOMING STATE PLANE COORDINATES, EAST ZONE, NAD83-2011, US SURVEY FEET, GRID DISTANCES. COMBINATION FACTOR = 0.9996684942.
2. CITY OF CHEYENNE CONTROL NETWORK FROM CONTROL POINTS AND ADJACENT STATE PLAT COORDINATES, EAST ZONE, NAD83-2011, US SURVEY FEET, SHOWN AS (NAD83-WY-E).
3. ALL UNMONUMENTED LOT CORNERS, ANGLE POINTS, AND POINTS OF CURVATURE TO BE MONUMENTED WITH 1½" ALUMINUM CAP STAMPED "SSS P.L.S. 5910" ON ¾" x 24" REBAR.
4. NO PORTION OF THE LANDS CONTAINED WITHIN THE PLAT BOUNDARY FALL WITHIN A 100-YEAR FEMA SFHA PER FEMA FLOOD INSURANCE RATE MAP (FIRM), PANEL No. 5602C1113F, DATED JANUARY 17, 2007.
5. OWNERSHIP OF LOTS 3 & 7, BLOCK 1, CREATED HEREWITH SHALL BE ESTABLISHED BY EQUAL UNDIVIDED INTEREST OF ALL OWNER(S) OF FEE-SIMPLE LOTS 1, 2, 4, 5, & 6 HEREON, THEIR LEGAL SUCCESSORS AND/OR ASSIGNS. THIS PLAT IS A REPLAT OF A PREVIOUS PLAT, AND THEREFORE, OPEN SPACE, DRAINAGE, PEDESTRIAN, AND VEHICULAR CIRCULATION, UTILITY SERVICE LINES, AND PUBLIC OR PRIVATE SHARED FACILITIES, MAINTENANCE RESPONSIBILITY WITHIN THIS REPLAT, THEIR LEGAL SUCCESSORS AND/OR ASSIGNS.
6. UTILITY EASEMENTS SHOWN HEREON ARE HEREBY GRANTED TO BLACK HILLS ENERGY, THEIR LEGAL SUCCESSORS AND/OR ASSIGNS.

LEGEND

- SET ¾" x 24" LONG REBAR WITH 1½" ALUMINUM CAP STAMPED "SSS P.L.S. 5910"
- FOUND 1½" ALUMINUM CAP STAMPED "SSS P.L.S. 2500"
- FOUND ¾" REBAR

VACATION STATEMENT

IT IS THE INTENT OF THIS REPLAT TO VACATE LOTS 8 THRU 12, CENTENNIAL HERITAGE, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING. EXISTING EASEMENTS TO BE VACATED UNLESS OTHERWISE NOTED.

APPROVALS

Approved by the City of Cheyenne Planning Commission this _____ day of _____ 20____



CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steel Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes (bearing and/or enclosed survey) and that I am a duly licensed and duly qualified surveyor, and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

Mayor _____ ATTEST: _____ City Clerk

FILING RECORD

REVISED: 11/7/2022
21425 PRELIMINARY.DWG

Scale: 1" = 40'

